

Ram Murat v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 December 2020 · Writ - C No. 22547 of 2020 · Writ - C No. 22547 of 2020 · **Writ dismissed; petitioner relegated to clause 6.10 representation.**

HEADNOTE

A consumer writ against the State and the distribution licensee is not maintainable where clause 6.10 of the Electricity Supply Code, 2005 affords an alternative statutory remedy by representation. Non-appearance of the petitioner does not prevent dismissal on that ground when departmental counsel so submits.

FACTUAL SUMMARY

Ram Murat filed Writ-C No. 22547 of 2020 in the High Court of Judicature at Allahabad against the State of Uttar Pradesh and two others, seeking relief on electricity grievances. The petition was listed before a Division Bench on 15 December 2020. When the matter was called, none appeared for the petitioner. Counsel for the respondent-Department was present and submitted that the grievances could be addressed if a representation were made under clause 6.10 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · CGRF-2007::6.10

alternative-statutory-remedy

HOLDING

A writ raising consumer electricity grievances is dismissed where clause 6.10 of the Electricity Supply Code, 2005 supplies an alternative statutory remedy by representation; the court will not entertain the petition on that ground. ¶ 1

PRINCIPLE TAGS

cgrf-alternative-statutory-remedy Writ dismissed solely because clause 6.10 of the Electricity Supply Code, 2005 was treated as an available alternative statutory remedy for the petitioner's grievances. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCES

The court did not examine the underlying supply dispute; dismissal rested only on the alternative clause 6.10 remedy. ¶ 1